Jayachandran vs The Regional Transport Authority on 6 June, 2009

Author: Ram Mohan Reddy

Bench: Ram Mohan Reddy

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' régpair and examg□joxz was sought: fmm payment of '4 'M{3to1'* Vshicle tax. To :3 q31c~:stion sf this Court, ieamed 311$' mgjgz. .

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6. U:1do1.1bie(ilyr, Scacticn 83v'{:£f fhe Ac£'.;3f:oVi:1t§S3 repiacemz-zmi of the veihicle W*L§'}é1'{",1}1T}{'1f§'§i"._UL&1?3 5I}{$E§i6I' of 3 permit may} with the' '~p{:m1iss'iot1 bi"-'..t.¥.';e ai:thori.ty by which this pannit was 'T-grafitéti, any vct§f1ic_le coveréti by 'f[f3i:\M:+t:1§A:1.;iji7'wan}: (>t..he:r V£:°:§'!.§{3f€': of the same' :1a.m:'e. 176.'-:;__ie .F§g11□at.a,ka Mater \Jehi_c:ies Rates, \\ " i<37é*i'é?;:[1'?bI~' shof9£"':.?:1.§'_;fu.1es'}§ provides for repiagrement. of a '.Ié2i'}.ig;je.,vC»:}$;'&';;*£%<f£;' by a 3;)&m1i_ta in thatg if a holder of a ;3«s3:m?t~it $1 any time to replace any vehicle cavered g by j□eziiiit by another vehicle, he shall tbmvard the pé1":1:.i:. étnd appiy in Form KM?" 53. to the '.['raI1sport ' by which iher permit 'W83 granted, stating tbs:

'4 reasons why the repiaotzment :33 (if3S§.I'€3€i and $ha£i aim simu.i§aneoz,1siy,---- Q qi\ 6:

{ii if the rep.E.a{:er vehicle is in his posseeséon, forward the eetiii□cate of registratif□I >6?'-ailgisi, vehieie; er

(ii) if the repiaeer vef□grie is""'1*:z§§<Vv»'i';1 '-evhis possession, state an}; ma:_I;:ez_j.a}._p';:ir£:ie1:Jee:z:f's' jgfxf respect of whjcih the'._:rep_l@a:::e3' V_3'€§}1§e1e'=.fé.=é:=§.§vI"--

differ fmm the ve§*1_§{:£e to .be__rep:é;ee'if§:.V"' Sub-«rule (2) eIIipQwer;é"'--th;e' '§;i':31I1S}3c}--14ii'A £§¥e.1f}1OI'§,1§', subgject to the provisions 1:I?i;'c§:»f'ivc:t,:«._§*;'~'1,}□}'_peItmissi.on for repiace1ne.13f,;~V;dofi9git)het□andiiig-Vthe fact that the replacer vef3ie'le"-.ciijiffe1's:i1§:'V'~x1§ate1ieI' respect:S and capacity mm. the vehi,cVie-..§e».be Sub»-rule (3) empowers the u aumie-zjtgy te rejeet..._..9n appiieation if the

permit holder £3.33 --VecmVfrs:1vei1ed any provisions thereof er has been depfifzecié 'efj□bssession 0f the vehicie proposed to be 'flild□f any hire-purchasse agreement.

3 r . Having regaré to the provieiims of law} SI.1§J}'a} grrfgardixag repiacememi, there can be no doubt that the QM respondent ought 1:0 have made an application in the required fem': invoking the }1.1risdi.c1':i0n %.lI}d€:I' '?

Sectien 83 of the Act read with Rule 79 of the R11l_c_'-gs, of the allthority which granted the permit and 36}:

> order for mplacemem: of the vehicle a{tat;?;:ed4_ * permit, so as to estabiish that »~*4:h;ci 295V"f é;~;;§)0i§d.ie:;;t's3.V 2 mnnit was not cevered by a vei"1i(□1c:::é_i?.f2'e1: 13:1ji:":.c:x1.1r5§':«".T§53§'*.. appiication for va;ri_ati021 was:-;.,_ 'r':1a_de. '¥fhe.V n3e:2*(i;:.1'ji*1f::i£i012 "
>
> in 1316 2:30' re$p0;1c:ictr.:t.'s ap□ié? gjén Aniiex-1.:.rc --"B" for variation tzhalt the véhjztié' L._1?;'g;s, *' 11:f;ti€2" sarrender", cannot, be. .wto'»-#11:' («if-repi§a_cement of the Vehicle by an éarder urétiiéfr. of this Act. There is force in the sLf§;::g1j::si{>z1 t3_f' iearrzeti counsel for 1731:: Q33 «_ resp'€:s.'{1(i§%$1}1j t_iti'£.« ..f_'_s1;:rrer2der" as mentioned in the 's:ppi--ica?i}:)r v';A§1I1€x:1r£--:-"I:5" was with I'¢3f€I'€I"1(3€ ta stmking at. éXém§3iirbg:3..T:'§rom payment ot'1\!£:;m2~ Vehicif: Tax when ._i:i1e vehiéie was zmder '$113 (;':(:>2.u"t, in f[}eva::iaS N. ,P:>9ja:{'y's Case: heid ' " "that. a pemmt. is I'(31'1{it3i'ed 'mini as no other vehicle: repiarres the vehisie acted in the pennit 81163 the application massed fbr variatian of the conc□iien af perznit as if the: permrit hoider were $311 <)pe::'at§ng the services with the very same vehicle, meted in tht: withotlt Inaking any effort. to operate t.h¥.§: » amounted to II1iSI'€p1'€S6HfE1ti0I1,",3J1d. _-'§§f('):'1l{1':. □at' ' entjtieci to the variation. In my:'~:.co1:1sideI4€r§"c~;§i_.nic;iq, i:*:: the facts of this case, the déiéi-sjoa (if th5:_1éarIic}:'(i--~V£€i£1g1e * ' Jtnige supra? has :10 e;.ppiicatjc:§f1,__ané thé'?-"Iib:1f;al, was □liy j1:S15iTi§€:!iiifi..n ¥:1"1a'-§_"'.*3L§1>e:a1. The writ. petition is withé5?,1t-- ;I2£§:*i«t: .§i{:c§:*dingi}?, rejectc□ saI-2___ Iudge